

9:00 10	25CV476751	J.S. Held, LLC vs. Vidushi Savant	Off calendar
9:00 11	25CV478953	Victor Moreno, et.al. vs 99 Cent Stores, LLC	See below
9:00 12	26CV492728	Metta Krach vs. Teresa Holland	See below
9:01 2-3	24CV445810	Janet Robles vs. Kenneth Hidendri Johnson	Plaintiff petitions this court for approval of minor Liana Robles' compromise of claim. Plaintiff and six year old daughter Liana Robles was injured. Plaintiff's motion is GRANTED. Plaintiff petitions this court for approval of minor Juan Robles' compromise of claim. Plaintiff and minor Juan Robles who is 3 years old (Plaintiff was 30 months pregnant with Juan Robles at the time of the accident) sustained injuries. Plaintiff's motion is GRANTED.
9:01 4	25CV470646	Suzan Brumm vs. Eletrun, LLC, et.al.	Defendant Electun's attorney John Cannizzaro moves this court to be relieved of counsel. There is no opposition to this motion. Defendant's attorney's motion is GRANTED.

Calendar Line 11

Case Name: *Moreno, et al. v. 99 Cents Only Stores, LLC, et al.*

Case No.: 25CV478953

On October 29, 2025, plaintiffs Victor Duran Moreno and Susana Andrade Lozano (collectively, "Plaintiffs") filed a complaint against defendants 99 Cents Stores LLC, Tambro Properties, LLC and Tambro, Inc., asserting causes of action for general negligence and premises liability. Defendants Tambro Properties, LLC and Tambo, Inc. (collectively, "moving defendants") move to quash service of the summons and complaint on them.

Citing Code of Civil Procedure section 418.10, subdivision (a)(1), moving defendants argue that "[a] defendant may move to quash service of summons on the ground of lack of jurisdiction over that defendant... [and] Plaintiffs' attempted service on Defendants is ineffective to confer personal jurisdiction because Defendants have no involvement in the case and were improperly made the target of service." (Defs.' memorandum of points and authorities in support of motion to quash service of the summons and complaint ("Defs.' memo"), pp.3:13-28, 4:1-6.) Moving defendants do not understand the term "lack of jurisdiction" in the context of a

motion to quash as they fail to provide any argument with regards to general or specific jurisdiction. Instead, they provide the declaration of Carla Macias, who states that “Defendants do not own, rent or have any connection to the premises located at 260 E. 10th Street, Gilroy, California 95020... Defendants do not know or have any relationship with plaintiffs Victor Duran Moreno and Susana Andrade Lozada... Defendants do not have any relationship with any 99 Cent Only Stores... [and] Defendants have no involvement whatsoever in the events, transactions, or occurrences alleged in the Complaint.” (Macias decl. in support of Defs.’ motion to quash summons and complaint (“Macias decl.”), ¶¶ 3-6.) However, the complaint plainly alleges that “[o]n November 17, 2023, the Premises was owned, leased, operated, occupied, managed, maintained, supervised, repaired, inspected, renovated, remodeled, fixed, and/or otherwise controlled by Defendants.” (Complaint, ¶ 12.) The California Supreme Court has recently stated that “a defendant may not use a motion to quash service of summons to dispute the truth of the allegations contained in an unlawful detainer complaint... [r]ather, a motion to quash under section 418.10, subdivision (a)(1) is a limited procedural tool to contest personal jurisdiction over the defendant where the statutory requirements for service of process are not fulfilled.” (*Stancil v. Super. Ct. (City of Redwood City)* (2021) 11 Cal.5th 381, 390.) The moving defendants are attempting to use their motion to quash to dispute the truth of the allegations contained in the complaint; this is not a valid basis for a motion to quash. Accordingly, the moving defendants’ motion to quash is DENIED.

Plaintiffs shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 12

Case Name: Metta Krach, an individual v. Teresa Holland, an individual et al.

Case No.: 26CV492728

Defendants Catalyst Family Office, LLC (Catalyst) and Teresa Holland (Holland) (collectively Defendants) move to compel arbitration of all claims asserted by Plaintiff Metta Grokenberger Krach (Plaintiff) and stay this action pending arbitration. Having considered the moving papers, opposition,¹ and supporting declarations and exhibits, the court will grant the motion to compel arbitration.

BACKGROUND

Keith Krach (Keith) retained myCFO, Inc. in or about February 2000 for financial management services, while married to his first wife. (See Complaint at ¶¶ 36, 37.) Keith's business relationship with myCFO continued after his divorce in 2004. (*Id.* at ¶ 38.) Part of myCFO, Inc. was later restructured as Harris myCFO, Inc. (Harris) which Keith retained from about 2002 to 2018. Defendant Holland was a director at Harris throughout this period. (*Id.* at ¶ 40.)

Keith married Plaintiff on January 1, 2009. (Complaint at ¶ 26.) Before marriage, Keith told Plaintiff about his prior engagement of myCFO/Harris and informed her that he intended to continue that relationship. (Declaration of Meta Grokenberger ["Grokenberger Decl."] at ¶ 5.) He asked Plaintiff if she would agree to have their family's finances managed by Harris. (*Ibid.*) Plaintiff agreed. (*Ibid.*) In or about January 2009, Keith advised Holland of his marriage to Plaintiff and provided a copy of their premarital agreement. (Declaration of Teresa Holland ["Holland Decl."] at ¶ 6.)

In March 2009, Keith and Plaintiff signed two agreements memorializing their engagement of Harris: (1) the Harris myCFO Professional Services Agreement (2009 PSA); and (2) the Harris myCFO Engagement Confirmation. (Grokenberger Decl. at ¶ 6.) The 2009 PSA

¹ Plaintiff's opposition is untimely, but the Court, nevertheless, in its discretion considers it. Defendants have still had opportunity to respond and prepare an adequate reply.